

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 13, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS - Rocky Case, Bryan Cook, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Richard Johnson. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Mr. Shanor declared he would abstain from participation on the item due to a business relationship involving the State Loan and Investment Board (Consent Agenda Item #18), and vacated Council Chambers. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Roybal and Mr. Cook, Agenda Item #28 (a) was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on January 23, 2017. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on February 7, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Chevrolet) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

ORDINANCE – 3rd READING – Pursuant to Sections 1.1.6 and 2.4.1 (b) of the Cheyenne Unified Development Code (UDC), amending Section 2.1.1 for the purpose of creating a subdivision plat waiver process for limited lot line adjustments of platted properties. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Upon inquiry, Lisa Pafford, Development Office, advised that the ordinance addresses one UDC annual review item only, and there will be more items presented to the Planning Commission next week. Motion carried. Voting "yes" -- all members of the governing body present. (#4164)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, Tract 71 and portions of Tracts 70 & 72, Allison Tracts, 2nd Filing and adjacent right of way, being situated in portions of the SW¼, NW ¼, and the NW¼, SW¼, of Section 8, T13N, R66W of the 6th Principal Meridian in Cheyenne, Laramie County, Wyoming (located northeast of the intersection of W. Allison Road and Waltersheid Blvd.). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” -- all members of the governing body present. (#4165)

ORDINANCE – 3rd READING – Pursuant to Sections 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR – Medium Density Residential to MR-2 – Medium Density Residential – Developing for Tract 71 and portions of Tracts 70 & 72, Allison Tracts, 2nd Filing located in the SW¼, of Section 8, T13N, R66W of the 6th Principal Meridian in Cheyenne, Laramie County, Wyoming (located near the intersection of W. Allison Road and Walterscheid Boulevard) to be known as Rorabaugh Subdivision). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body present. (#4166)

ORDINANCE – 2nd READING – Amending the Major Street Plan Official Map 2015, by adding the following roadway segments: Storey Boulevard extension from Highland Drive to Beckle Road and Van Buren Avenue extension from Opal Drive to Storey Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE – 2nd READING – Amending Section 5.36.030, Public Addresses, Entertainment and Advertising on Streets, of Chapter 5.36, Circuses, Carnivals and Amusement Rides, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Anthony Vibbard spoke in favor of the ordinance and referenced a newspaper article he had written recently on the topic, and commented on constitutional rights. Reporting for Finance Committee, Mr. Luna moved to approve on second reading, seconded by Mr. Cook. Mr. Shanor moved to amend the last sentence under Section 5.36.030 by adding the word “written” so the sentence would read as follows, seconded by Mr. Cook: “Persons shall obtain the written consent of the owner, manager or occupant of the premises in front of or adjoining the place such person proposes to give such public address, entertainment or advertising”. Discussion included the types of scenarios that may fall under the ordinance; difficulty in obtaining written consent from property owners and when consent would not be required; law enforcement, and encouraging “busking” and street performances in the public rights-of-way in the downtown area. Motion to amend failed. Voting “yes” -- Mr. Luna and Mr. Shanor. Voting “no” – Mayor Orr, Mr. Case, Mr. Cook, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. White. Main motion carried. Voting “yes” - all members of the governing body present with the exception of Mr. Shanor and Mayor Orr voting “no”.

ORDINANCE – 1st READING- Repealing Section 10.52.050, Parking for certain purposes prohibited, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor - Mr. Johnson)

ORDINANCE – 1st READING - Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending various sections of the Cheyenne Unified Development Code (UDC) to consolidate the LR-1, LR-2, MR-1, MR-2, HR-1, and HR-2 zone districts into LR, MR, and HR zone districts – referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION – Adopting the Plan: Official Map for Storey Boulevard/Summit Road and Van Buren Avenue including 10% Design Plan. Motion (per consent agenda) carried. (#5830)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Rorabaugh Subdivision, a replat of Tract 71 and portions of Tracts 70 & 72, Allison Tracts, 2nd Filing, located in a portion of the SW ¼, NW ¼, of Section 8, T 13 N, R 66 W of the 6th Principal Meridian in Cheyenne, Laramie County, Wyoming (located near the intersection of W. Allison Road and Walterscheid Boulevard). Motion (per consent agenda) carried. (#5831)

RESOLUTION – Authorizing the Mayor and City Clerk to accept and execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement for the Architectural Assistance Plan for the 2017 Historic Cheyenne Facade Improvement Program. Mr. Luna moved to adopt, seconded by Mr. White. Mr. Luna moved to amend by substitute dated January 26, 2017, seconded by Mr. Laybourn. Jan Spires, Urban Planning, explained the substitute increases the grant award amount from \$9,500 to \$13,500. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#5832)

[CA] RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction Account Grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of purchasing a fire engine. Motion (per consent agenda) carried. (#5833)

[CA] RESOLUTION – Directing the City Clerk to schedule a Public Hearing pursuant to Section 5.12.040(2) of the Cheyenne City Code to receive public comment on violations of City ordinances and State laws pertaining to the sale of alcoholic beverages, which violations have occurred at ‘Peppermill Bar and Liquor’ and to provide a notice of said Public Hearing to Minglemill, Inc., DBA ‘Peppermill Bar and Liquor’ – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Supporting the expedient redevelopment of the building located at 1602 Capitol Avenue, commonly referred to as the historic Hynds Building – referred to Finance Committee. (Sponsors - Dr. Rinne and Mr. Shanor)

[CA] RESOLUTION – Re-appropriating the fiscal year 2017 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor - Mr. Luna)

[CA] RESOLUTION – Re-authorizing the Purchasing Division of the City of Cheyenne to proceed on a semiannual basis with the sale of surplus property pursuant to W.S. § 15-1-112(a) – referred to Finance Committee. (Sponsor - Mr. Luna)

[CA] RESOLUTION – Declaring as surplus a City-owned property located at 2020-2022 Capitol Avenue, legally described as all of Lots 1 and 2, Block 266, Original City, together with improvements thereon, Cheyenne, Laramie County, Wyoming; authorizing the Director of Public Works to issue public notice requesting redevelopment requests for proposals and to proceed with proposed sale of said real property pursuant to Wyo. Stat. §15-1-112 – referred to Finance Committee. (Sponsors - Mr. Luna, Dr. Rinne and Mr. Shanor)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Murray Hill Estates 6th Filing, a Replat of Tract 51, Murray Hill Estates, 3rd Filing, and Tract 2, Murray Hill Estates, 5th Filing, Laramie County, Wyoming (located west of and adjacent to Fox Ridge Drive, south of Twin Mountain Road) – referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION – Stating the intent to initiate the reclamation of Crow Creek along its watershed within the City limits of the City of Cheyenne; authorizing the execution of a Memorandum of Understanding between the City of Cheyenne, the City of Cheyenne Board of Public Utilities and the Laramie County Conservation District to develop and implement the Reclamation Project; and appointing an Advisory Committee to participate in the project – referred to Public Services Committee. (Sponsor - Mr. Laybourn)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the United States Marshals Service – Violent Offender Task Force. Motion (per consent agenda) carried. (#6621)

[CA] Memorandum of Agreement between the City of Cheyenne, Laramie County, and the Cheyenne Downtown Development Authority for the purpose of creating a Brownfields Cleanup Revolving Loan Fund and associated Loan Review Committee – referred to Finance Committee.

[CA] Professional Service Agreement between the City of Cheyenne and Western Research and Development, Ltd. for the FY2017-18 On-Call Traffic Engineering Services Project (2011-2014 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration for entering into a single source contract with Waste Management of Colorado for the disposal of non-hazardous contaminated waste being generated from the Wetlands Pumphouse Project (1% Specific Purpose Sales and Use Tax) – referred to Finance Committee.

[CA] Professional Services Contract between the Cheyenne Metropolitan Planning Organization and AVI P.C. for the Whitney Road 10% Corridor Plan (MPO funds) – referred to Finance Committee.

[CA] Change Order to Bid #E-5-17 for furnishing 2000 95-gallon and 65-gallon automated refuse carts for the Sanitation Division (Solid Waste fund). Motion (per consent agenda) carried (amount not to exceed \$870.55).

[CA] Contract Modification #1 to Contract No. 6592 between the City of Cheyenne, Parks and Recreation Department, and Reiman Corp to provide and install all-abilities playground and appurtenances at Cahill Park. Motion (per consent agenda) carried (amount not to exceed \$172,420.30). (#6592)

[CA] Contract Modification #1 to Contract No. 6553 between the City of Cheyenne and Reiman Corporation for partial release of the retainage for the 19th Street Rehabilitation, Phase III Project. Motion (per consent agenda) carried. (#6553)

Consideration of Bid #S-4-17 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corp., Cheyenne, WY for the Cheyenne Pumphouse Wetlands Project (1% Specific Purpose Sales and Use Tax). Mr. Luna moved to approve in an amount not to exceed \$1,726,168.55, seconded by Dr. Rinne. It was noted the project is the first piece of work to be done involving development of the West Edge of the City. Motion carried. Voting “yes” -- all members of the governing body present. (#6622)

[CA] Consideration of Bid #S-8-17 for a contract between the City of Cheyenne, Engineering Department, and Pole Mountain Electric, Inc., Cheyenne, for the Dell Range/Yellowstone Signal Upgrade Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

CA] Consideration of Bid #E-12-17 for furnishing 160 2-yard front end load containers for the Sanitation Division (Solid Waste Management funds) – referred to Finance Committee.

Announcement was made of a Public Hearing to be held Monday, February 27, 2017 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Ave., Cheyenne, Wyoming, for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, and microbrewery permits) filed with the City Clerk’s Office.

Announcement was made of a Public Hearing to be held Monday, February 27, 2017 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Ave., Cheyenne, Wyoming, for a retail liquor license transfer of ownership application filed with the City Clerk’s Office for Lincolnway, Inc. d/b/a Lincolnway Liquor, 2825 East Lincolnway, Cheyenne, Wyoming (License currently held by Mason Properties, LLC dba Lincolnway Liquor, 2825 E. Lincolnway, Cheyenne, WY).

Announcement was made that due to the Presidents’ Holiday on Monday, February 20, 2017, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O’Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, February 21, 2017 at 11:00 a.m. and Public Services Committee will meet Wednesday, February 22, 2017 at Noon.

Under other business:

Dr. Rinne stated that at the last City Council meeting on January 23, 2017 the vote regarding adoption of the resolution authorizing a Final Plat for South Ridge Addition was inadvertently reported as approved when in fact not enough affirmative votes were received to achieve passage.

As he voted on the prevailing side, Dr. Rinne moved to reconsider the resolution to allow the applicant an opportunity to provide additional information relating to the proposed Final Plat, and to provide a clear record of the final action that will be taken on the resolution, seconded by Mr. Shanor. Carol Intlekofer, City Clerk, read the following entitlement of the item to be reconsidered into the record: Resolution - Authorizing the Mayor and the City Clerk to sign a Final Plat for South Ridge Addition, a replat of Lot 2, Block 1 and a 20' wide alley of Estevan's Subdivision, situate within a portion of the SW1/4 NW1/4 Section 34, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (located south of and adjacent to Randy Road, west of Ridge Road). Randy Reed with the law firm of Dray, Dyekman, Reed and Healey, representing South Ridge apartment group owners, commented that all plat requirements have been met, and introduced others present at the meeting who would be providing additional information on the proposed project. Sam Long, Summit Housing Group, project owner, provided a brief history and current status of the Group's affordable housing project at the site, including approval and financing involving the WCDA (Wyoming Community Development Association), other projects the Group has been involved in or have planned, zoning and density level, and the need for affordable housing in the community. During his comments, Mr. Long provided a hand-out (on file with City Clerk's office) reflecting a rendering of proposed building designs. Jen Clary, Encompass v2, architectural consultant for the project, also provided information about the project, noting they have not requested any variances. Ms. Clary commented on drainage control, fire access, parking and building height. During her comments, Ms. Clary submitted a hand-out (on file with City Clerk's office) reflecting a 3-dimensional drawing of the height of the proposed buildings with slope and grading plans. Patrice Gapen spoke in opposition to the project, stating concerns with density, whether housing of this type was needed pursuant to information provided by the Cheyenne Housing Authority (CHA), setbacks, height of buildings, size of the site footprint vs. the project, drainage, parking, access and traffic congestion, and other projects currently underway for similar affordable housing units in the area. Mr. Long advised that WCDA had conducted a site visit last year; that CHA had provided a letter concerning the waiting list for affordable housing, that a market study reflected a high need for this type of housing, and that the project meets UDC (Uniform Development Code) compliance. Upon inquiry from Patti Riesland, Mayor's Council for People with Disabilities, Ms. Clary stated 1 dwelling in each unit will be a Type A under the ADA with a parking space provided. Discussion included location of Ms. Gapen's property in the vicinity, which consists of 4-plex apartment units; project meeting compliance with City requirements; shortage of affordable housing and vacancy rates. Motion to reconsider carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Luna voting "no". Main motion to adopt the resolution carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Luna and Mayor Orr voting "no". (#5834)

There being no further business to come before the governing body, the meeting was officially adjourned at 7:05 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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